

#	Case Name	Tentative
1	Ace Property and Casualty Insurance Company vs. Northwood Villas Maintenance Corporation 2024-01439117	Motion for Summary Judgment and/or Adjudication <i>Continued to 6/25/26. See minute order dated 5/4/26.</i>
2	Coconut Funding Corp. vs. Pearlman 2025-01479665	1. Motion for Preliminary Injunction 2. Case Management Conference <i>Continued to 6/18/26. See minute order dated 5/5/26.</i>
3	Haynes vs. Hyundai Motor America 2025-01464729	Demurrer to Complaint Defendant Hyundai Motor America’s (defendant) demurrer to complaint is OVERRULED . Defendant shall answer the complaint within 10 days. The complaint states facts sufficient to constitute the fifth cause of action for fraudulent concealment–inducement, with the requisite specificity. (See <i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40-41, 43-44 [elements, specificity; duty to disclose, generally]; <i>Gilead Tenofovir Cases</i> (2024) 98 Cal.App.5th 911, 949 [“a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects”]; <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844; see also Compl. ¶¶ 4, 6-7, 10, 47-59.) The economic loss rule does not bar a claim for fraudulent concealment. (<i>Rattagan v. Uber Technologies, supra</i> , 17 Cal.5th at p. 38.) The court declines to consider and has not considered plaintiff Barney Whitford Haynes’s (plaintiff) opposition to the demurrer. The opposition is untimely, and there is no proof of service of the opposition. (See Code Civ. Proc., § 1005, subd. (b).) Defense counsel’s reply declaration confirms plaintiff has not served the opposition to date. (See Knighton Reply Decl. ¶¶ 4-5.) Motion to Strike Portions of Complaint Defendant’s motion to strike portions of complaint is DENIED .

		The prayer for punitive damages is adequately supported by the fifth cause of action for fraudulent concealment–inducement. (<i>Stevens v. Superior Court (St. Francis Med. Ctr.)</i> (1986) 180 Cal.App.3d 605, 610 [a properly pled fraud claim will itself support recovery of punitive damages].) The court declines to consider and has not considered plaintiff’s opposition to the motion to strike for the same reasons discussed above with respect to his opposition to the demurrer. (See Code Civ. Proc., § 1005, subd. (b); Knighton Reply Decl. ¶¶ 4-5.) Defendant shall give notice. If parties/counsel wish to give argument, both hearings will be continued to July 9, 2026 at 1:30 p.m. in Dept. C44.
4	Khuu vs. Fairmont North Tustin 2025-01515709	Demurrer to Complaint <i>Continued to 6/4/26. See minute order dated 4/28/26.</i>
5	Maaranu vs. Ponder 2025-01505635	1. Motion to Compel Arbitration 2. Petition to Compel Arbitration <i>Continued to 6/18/26. See minute order dated 5/4/26.</i>
6	Power vs. Deerfield Apartments, LLC 2025-01473139	Motion to Compel Arbitration Defendants Deerfield Apartments, LLC (Deerfield) and Irvine Management Company’s (IMC) motion to compel arbitration is GRANTED. (See 9 U.S.C. § 2 [Federal Arbitration Act (FAA)]; <i>Victrola 89, LLC v. Jaman Properties 8 LLC</i> (2020) 46 Cal.App.5th 337, 345-346 (<i>Victrola</i>) [parties may incorporate the FAA]; <i>Johnson v. Walmart Inc.</i> (9th Cir. 2023) 57 F.4th 677, 681 [burden]; <i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 236 [burden].) Plaintiff Jennifer Power is ORDERED to arbitrate her claims against defendants in accordance with the subject arbitration agreement. (Clem Decl. at Ex. 1 [lease at arbitration (arb.) addendum].) This action is hereby STAYED pending completion of arbitration or further order of the court. (See 9 U.S.C. § 3.)